

Imaged Document Cover Sheet

The document following this cover sheet is an imaged document supplied by LANDATA®, Secure Electronic Registries Victoria.

Document Type	Instrument
Document Identification	AM638353G
Number of Pages (excluding this cover sheet)	24
Document Assembled	20/03/2026 13:44

Copyright and disclaimer notice:

© State of Victoria. This publication is copyright. No part may be reproduced by any process except in accordance with the provisions of the Copyright Act 1968 (Cth) and for the purposes of Section 32 of the Sale of Land Act 1962 or pursuant to a written agreement. The information is only valid at the time and in the form obtained from the LANDATA® System. None of the State of Victoria, LANDATA®, Secure Electronic Registries Victoria Pty Ltd (ABN 86 627 986 396) as trustee for the Secure Electronic Registries Victoria Trust (ABN 83 206 746 897) accept responsibility for any subsequent release, publication or reproduction of the information.

The document is invalid if this cover sheet is removed or altered.

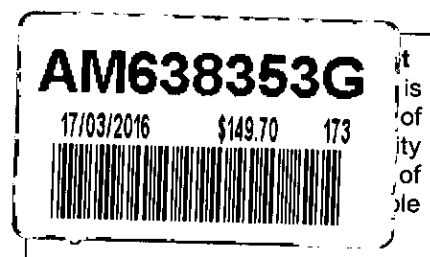
Application by a responsible authority for the recording of an agreement

Section 181 Planning and Environment Act 1987

Form 21

Lodged by:

Name: Harwood Andrews
Phone: 5225 5225
Address: 70 Gheringhap Street, Geelong 3220
Ref: 1KXP:21503543
Customer code: 2235J



The responsible authority, having made an agreement referred to in section 181(1) of the **Planning and Environment Act 1987**, requires a recording to be made in the Register for the land.

Land: *(insert Volume and Folio reference) (if part only, define the part)*

Certificates of Title of Volume 11589 Folios 265 – 270, 273 and 276 (more particularly described as Lots B, C, D F, G, K, H and J on PS723410Y)

Responsible authority: *(name and address)*

Ballarat City Council, The Phoenix, 25 Armstrong Street South, BALLARAT 3350

Section and Act under which agreement made:

Section 173 Planning and Environment Act 1987

A copy of the agreement is attached to this application:

Signature for the responsible authority:

Name of officer:

Date: 11 March 2016

Natalie Reiter
General Manager City Strategy
City of Ballarat
Authorised Officer pursuant to Section 224
of the Local Government Act 1989



**HARWOOD
ANDREWS**

**SECTION 173 AGREEMENT
PLANNING AND ENVIRONMENT ACT 1987**

BALLARAT CITY COUNCIL
Council

- and -

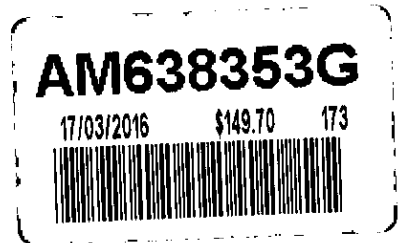
THE PARTIES LISTED IN SCHEDULE 1
Owner

in relation to land at:

Tait Street and Ross Creek Road, Bonshaw

Harwood Andrews
ABN 98 076 868 034
Level 5, 707 Collins Street, Melbourne 3008, Victoria, Australia
DX 30970 Stock Exchange
PO Box 633 Collins Street West Vic 8007

T 03 9620 9399 F 03 9620 9288



THIS AGREEMENT is made on the 14th day of March 2016.

PARTIES:

1. **BALLARAT CITY COUNCIL** of 25 Armstrong Street South, Ballarat, Victoria (**Council**); and
2. **The parties listed in Schedule 1 (Owner).**

RECITALS:

- R1. Council is the responsible authority under the Planning Scheme. Council is also the Collecting Agency under the DCP for the purposes of section 46H of the Act.
- R2. Council enters into this Agreement in its capacity as the responsible authority and the Collecting Agency.
- R3. The Owner is or is entitled to be the registered proprietor of the Land.
- R4. The Land is subject to the Urban Growth Zone (Schedule 2) and the Development Contributions Plan Overlay (Schedule 1) under the Planning Scheme. The PSP and the DCP apply to the Land.
- R5. The DCP sets out the contributions required from individual landholders within the area covered by the DCP to fund infrastructure and services required as a result of development of the area covered by the DCP.
- R6. The DCP provides that if the Collecting Agency agrees in writing, infrastructure or land projects may be provided by landholders developing land covered by the DCP with a credit being provided to the landholder against their Development Infrastructure Levy liability.
- R7. On the terms and conditions set out in this Agreement, the Collecting Agency has agreed to the Owner delivering certain projects (identified in this Agreement as either a DCP Construction Project or a DCP Land Project) with a Credit being provided to the Owner against its Development Infrastructure Levy liability.
- R8. On 7 March 2014, Council issued the Permit allowing staged residential subdivision of the Land.
- R9. Condition 28 of the Permit requires the Owner to enter into this Agreement prior to the issue of a Statement of Compliance or at such other time agreed to in writing by Council, to implement the requirements of the DCP.
- R10. This Agreement is entered into between Council and the Owner pursuant to section 173 of the Act, in order to:
 - i) satisfy the requirements of condition 28 of the Permit;
 - ii) set out the obligations of the Owner to pay the Development Infrastructure Levy, or, in lieu of payment, undertake works for a DCP Construction Project or transfer land to Council for a DCP Land Project;
 - iii) set out the obligations of the Owner to transfer the Open Space Land to Council; and
 - iv) achieve and advance the objectives of planning in Victoria and the objectives of the Planning Scheme in respect of the Land.
- R11. As at the date of this Agreement:

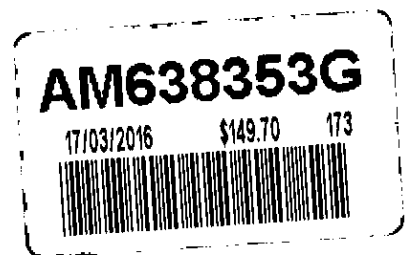
- 3 -

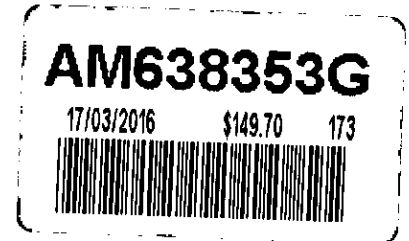
- i) a Statement of Compliance has been issued by Council for Stage 1. The Parties have agreed to enter into this Agreement prior to the issue of a Statement of Compliance for Stage 2; and
- ii) the Owner has transferred to Council the land comprising the DCP Land Projects as part of Stage 1.

R12. Part of the Land is subject to

registered mortgage No. AL767337R registered on certificate of title volume 11589 folio 273 and 276 in favour of Webster Dolita Finance Ltd.

All Mortgagees, as evidenced by their consent on the attestation pages, consent to this Agreement and, in the event that any become a mortgagee in possession, to be bound by this Agreement.





OPERATIVE PART:

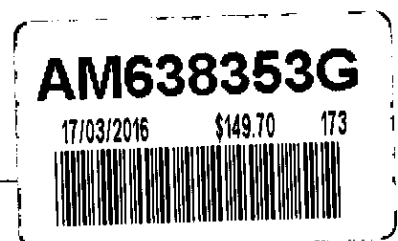
1 DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement, the words and expressions set out in this clause have the following meanings unless the context admits otherwise:

- (1) **Act** means the *Planning and Environment Act 1987*.
- (2) **Agreement** means this agreement and any agreement executed by the Parties expressed to be supplemental to this agreement.
- (3) **Certificate of Practical Completion** means a written certificate prepared by Council stating that a DCP Construction Project has been completed to the satisfaction of Council.
- (4) **Collecting Agency** means Ballarat City Council or its successor as the authority responsible for administering and enforcing the DCP and includes its agents, officers, employees, servants, workers and contractors.
- (5) **Council** means the Ballarat City Council or its successor as the municipal body under the *Local Government Act 1989* which is responsible for the land the subject of the PSP area, and includes its agents, officers, employees, servants, workers and contractors.
- (6) **Credit** means a credit in the amount specified in Column D in Schedule 2 for a DCP Land Project and Column E in Schedule 2 for a DCP Construction Project to be adjusted in accordance with the Indexation against the Development Infrastructure Levy payable by the Owner in accordance with the DCP and this Agreement.
- (7) **DCP** means the document incorporated into the Planning Scheme entitled 'Ballarat West Development Contributions Plan' version 4.2, dated July 2014, as amended from time to time.
- (8) **DCP Construction Project** means the works listed in Column B in Schedule 2 and, except as otherwise provided in this Agreement, are the works described in the DCP.
- (9) **DCP Land Project** means land listed Column A in Schedule 2 and, except as otherwise provided in this Agreement, is the land identified in the DCP.
- (10) **Development Infrastructure Levy** means the development infrastructure levy required to be paid in accordance with the DCP and this Agreement calculated in accordance with the DCP.
- (11) **Endorsed Plan** means the plans endorsed under the Permit.
- (12) **GAIC** means the Growth Areas Infrastructure Charge under the Act.
- (13) **Gifted Land** means land for passive open space as shown on the Endorsed Plans to be gifted by the Owner to Council at no cost to Council and more specifically comprising a reserve for cultural heritage, the creek reserve and all other reserve land provided over and above the area of Open Space Land provided in accordance with clause 7.2 of this Agreement.
- (14) **GST Act** means the *New Tax System (Goods and Services Tax) Act 1999 (Cth)* as amended from time to time.

- (15) **GST Regulations** means *A New Tax System (Goods and Services Tax) Regulations 1999 (Cth)* as amended from time to time.
- (16) **Indexation** has the meaning identified in the first bullet point in clause 4.1 of the DCP and in the event that one or more of the listed indexes is no longer available then the Council will nominate a replacement index.
- (17) **Infrastructure Project** means an infrastructure project identified in the DCP as being funded by the DCP, including community infrastructure, community facility, drainage, open space, road construction and traffic management items.
- (18) **Land** means the land located at Tait Street and Ross Creek Road, Bonshaw described in Schedule 1 and any reference to the Land includes any lot created by the subdivision of the Land or any part of it.
- (19) **Landscape Master Plan** means the plan entitled Landscape Master Plan forming part of the Endorsed Plans.
- (20) **Localised Infrastructure** means works, services or facilities necessitated by the subdivision or development of the Land including but not limited to provision of utility services such as water supply, stormwater drainage, sewerage, gas and electricity services, telecommunications infrastructure and local road, bridges, culverts and other water crossings, any required associated traffic control measures and devices. For the purpose of this Agreement, localised infrastructure does not include the infrastructure required in accordance with the DCP or other infrastructure that is in the nature of regional or state infrastructure.
- (21) **Maintenance Bond** means a monetary sum, being no greater than 5% of the Credit value of the DCP Construction Project to secure maintenance of a DCP Construction Project.
- (22) **Maintenance Period** means the period of 12 months from the issue of a Certificate of Practical Completion for a DCP Construction Project or from the transfer of the land to Council for a DCP Land Project.
- (23) **Mortgagee** means the person or persons registered or entitled from time to time to be registered by the Registrar of Titles as mortgagee of the Land or any part of it.
- (24) **Open Space Land** means land for passive open space as shown on the Endorsed Plans to be provided by the Owner to Council in accordance with clause 52.01 of the Planning Scheme and the Permit.
- (25) **Owner** means the person registered or entitled from time to time to be registered by the Registrar of Titles as proprietor of an estate in fee simple of the Land or any part of it and includes a Mortgagee in possession.
- (26) **Party or Parties** means the Owner and Council under this Agreement as appropriate.
- (27) **Permit** means the planning permit no. PLP/2013/744, as amended from time to time, issued on 7 March 2014 authorising subdivision of the Land in accordance with the plans endorsed by Council.
- (28) **Plan of Subdivision** means a plan showing the subdivision of the Land which creates an additional lot which can be disposed of separately or which can be re-subdivided.
- (29) **Planning Scheme** means the Ballarat Planning Scheme and any successor instrument or other planning scheme which applies to the Land.



- (30) **PSP** means the document incorporated into the Planning Scheme entitled 'Ballarat West Precinct Structure Plan' dated June 2012, as amended from time to time.
- (31) **Residential Lot** means a lot created as a result of the subdivision of the Land which in the opinion of Council is of a size and dimension that it is intended to be developed as a housing lot without further subdivision.
- (32) **Schedule** means a schedule to this Agreement.
- (33) **Stage** is a reference to a stage of subdivision of the Land as shown on an approved Plan of Subdivision or an Endorsed Plan.
- (34) **Statement of Compliance** means a statement of compliance issued by Council under the *Subdivision Act 1988*.
- (35) **Tribunal** means the Victorian Civil and Administrative Tribunal.

AM638353G

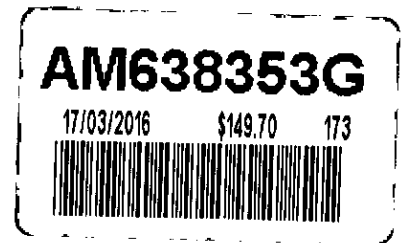
17/03/2016 \$149.70 173



1.2 Interpretation

In the interpretation of this Agreement (including its recitals and any schedules) except to the extent that the context otherwise requires:

- (1) words (including defined expressions) denoting the singular will be deemed to include the plural and vice versa;
- (2) words (including defined expressions) denoting any gender will be deemed to include all other genders;
- (3) words (including defined expressions) denoting persons will be deemed to include all trusts, bodies and associations, corporate or unincorporated, and vice versa;
- (4) references to a statute or statutory provision will be deemed to include any statutory provision which amends, extends, consolidates or replaces the same or which has been amended, extended, consolidated or replaced by the same and any by laws, local laws, licences, statutory instruments, rules and regulations, orders, notices and directions, consents or permission made under it and any condition attaching to it;
- (5) headings are included for convenience only and will not affect the interpretation of this Agreement or any schedule;
- (6) references to clauses, recitals and schedules are to clauses of, and recitals and schedules to, this Agreement;
- (7) references to the Parties will include their transferees, heirs, assigns, and liquidators, executors and legal personal representatives as the case may be;
- (8) reference to the Land in this Agreement will include a reference to any lot created by the subdivision of the Land or any part of it;
- (9) reference to a document or agreement includes reference to that document or agreement as changed, novated or replaced from time to time; and
- (10) where a word or phrase is given a definite meaning in this Agreement a part of speech or other grammatical form for that word or phrase has a corresponding meaning.



2 OWNERS' COVENANTS

2.1 Payment of the Development Infrastructure Levy

The Owner agrees that prior to the issue of a Statement of Compliance for any Stage the Owner must pay the Development Infrastructure Levy subject to the Owner's entitlement to a Credit in accordance with this Agreement.

2.2 Entitlement to a Credit

The Owner agrees that the Owner will be entitled to a Credit for a Stage if it is agreed in writing by Council that:

- (1) there is an existing Credit in excess of the liability for that Stage in which event the Credit will be applied in accordance with clause 5 of this Agreement; or
- (2) there is an existing Credit which is less than the liability for that Stage in which event the liability to pay the Development Infrastructure Levy will be reduced by the amount of the Credit; or
- (3) the works comprising the DCP Construction Project or the land comprising the DCP Land Project will vest in Council upon the issue of the Statement of Compliance for that Stage in which case the liability to pay the Development Infrastructure Levy will be reduced by the amount of Credit that will accrue upon the issue of the Statement of Compliance for that Stage; or
- (4) there is a combination of the circumstances described above in clauses 2.2(1), (2) or (3).

3 DCP CONSTRUCTION PROJECTS

3.1 Construction of the DCP Construction Projects

The Owner agrees that the Owner will construct each of the DCP Construction Projects:

- (1) prior to the issue of a Statement of Compliance for a Plan of Subdivision creating the Stage listed in Column G of Schedule 2 for that DCP Construction Project or at such other timeframe agreed to in writing by Council;
- (2) in accordance with the plans and specifications approved by Council;
- (3) in accordance with the specifications, requirements and any necessary approvals of all relevant authorities;
- (4) in compliance with any applicable state or federal law; and
- (5) to the satisfaction of Council.

3.2 Design of the DCP Construction Projects

The Owner agrees that:

- (1) the Owner will, at the Owner's expense, prepare plans and specifications for each DCP Construction Project and submit those plans and specifications to Council for approval;
- (2) the plans and specifications to be approved by Council will be generally in accordance with the DCP and the Endorsed Plans including: Design Response Plan

LH-002 Rev C approved 12/02/2016, Landscape Plan TPA 01022016 approved 12/02/2016, Construction Plans LH001 Rev 2 approved 20/02/2015, Construction Plans LH002 approved 01/07/2015, Construction Plans LH002A Rev 1 approved 20/11/2015, Wetlands Basin and Drainage Works LH002B Rev 1 approved 22/02/2016 and Landscape Plan - Wetland Plant Schedule TPA 240220216 approved 25/02/2016 unless otherwise agreed in writing by both Council and Owner; and

- (3) the Owner will, at the Owner's expense, obtain all necessary permits and approvals for the DCP Construction Project.

3.3 Issue of a Credit for a DCP Construction Project

The Collecting Agency agrees that it will, upon the issue of a Certificate of Practical Completion for a DCP Construction Project, issue the Owner a Credit equal to the amount listed for that DCP Construction Project in Column E of Schedule 2 to be adjusted in accordance with the Indexation.

3.4 Issue of a Certificate of Practical Completion

The Parties agrees that:

- (1) when the works for a DCP Construction Project have been completed to the satisfaction of Council, subject to clause 3.4(2) Council must within a reasonable period issue a Certificate of Practical Completion for that DCP Construction Project; and
- (2) the issue of a Certificate of Practical Completion by Council is subject to compliance with this Agreement.

3.5 Maintenance of DCP Construction Projects

The Parties agree that:

- (1) following the issue of a Certificate of Practical Completion the Owner must provide Council with:
 - (a) a copy of any maintenance information, operational manual or other material which is reasonably required for the ongoing operation and maintenance of the DCP Construction Project;
 - (b) a copy of any certificate, consent or approval required by any authority for the carrying out, use or occupation of the DCP Construction Project; and
 - (c) a Maintenance Bond in the form of a bank guarantee or other form of security to the satisfaction of Council for the Maintenance Period for all works undertaken by the Owner forming part of a DCP Construction Project;
- (2) the Owner is responsible for the:
 - (a) maintenance of the DCP Construction Project in good order, condition and repair for the Maintenance Period; and
 - (b) repair of any defects during the Maintenance Period;
- (3) Council may use the Maintenance Bond to correct any defects in the works forming part of a DCP Construction Project in the event that:
 - (a) any works forming part of a DCP Construction Project are not maintained to Council's satisfaction for the Maintenance Period; and



- 9 -

- (b) the Owner fails to comply with a written direction from Council to undertake any maintenance works required by Council; and
- (4) Council will return the Maintenance Bond following completion of the Maintenance Period less any monies used by Council to correct any defects in the works in accordance with clause 3.5(3).

4 DCP LAND PROJECTS

4.1 Provision of DCP Land Projects

The Parties acknowledge and agree that as at the date of this Agreement the Owner has transferred to Council Reserve No. 2 on PS723410Y comprising the DCP Land Projects DI_LA_RB25 and DI_LA_RB26 being part of DCP contributions for Stage 1.

4.2 Condition of the land

The Owner acknowledges and agrees that the land transferred to Council as part of Stage 1:

- (1) was sown to grass to the satisfaction of Council except as agreed by Council;
- (2) was free of all encumbrances except as agreed by Council;
- (3) was free from contamination;
- (4) had any liability for GAIC and tax discharged prior to it being transferred to Council and to the extent it was not, the Owner shall remain liable to Council for any GAIC liability incurred by Council; and
- (5) was accompanied by a certificate from the State Revenue Office certifying that all GAIC (if applicable) or any tax liabilities in respect of the land have been discharged.

4.3 Issue of a Credit for a DCP Land Project

The Collecting Agency agrees that it will, upon the Owner complying with its obligation under clause 4.1 in relation to a DCP Land Project, issue the Owner a Credit equal to the amount shown for that DCP Land Project in Column D of Schedule 2, adjusted in accordance with the Indexation.

4.4 No further compensation payable

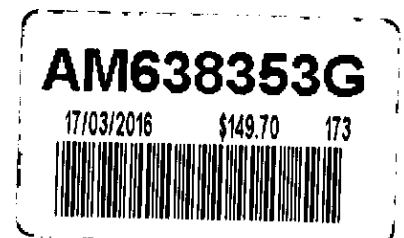
The Owner acknowledges that, upon the Collecting Agency complying with its obligation under clause 4.3, no further compensation is payable to the Owner in relation to the land transferred to Council under clause 4.1.

5 CREDIT

5.1 Application of the Credit

The Collecting Agency agrees that:

- (1) the Owner will not be required to make cash payments towards the Owner's obligation to pay the Development Infrastructure Levy until any Credit has been exhausted as determined in accordance with clause 5.2; and



- (2) prior to the issue of a Statement of Compliance for a Stage, the Collecting Agency must deduct the amount of Development Infrastructure Levy payable in relation to that Stage from any Credit.

5.2 Exhaustion of the Credit

When the amount of the Development Infrastructure Levy payable in relation to a Stage exceeds the amount of any Credit remaining, which the Parties agree will occur at Stage 6:

- (1) the Collecting Agency must notify the Owner in writing that the Credit has been or will be exhausted;
- (2) in relation to that Stage, the Owner must pay in cash an amount equal to the amount of the Development Infrastructure Levy payable in relation to that Stage that exceeds the amount of any Credit remaining prior to the issue of Statement of Compliance for that Stage; and
- (3) in relation to subsequent Stages, the Owner must pay the Development Infrastructure Levy in cash prior to the issue a Statement of Compliance for each Stage or as otherwise agreed by the Collecting Agency, unless further Credit is issued by the Collecting Agency.

5.3 Refund of Credit

The Collecting Agency agrees that:

- (1) within 120 days of a Statement of Compliance being issued in respect of the final Stage or the issue of a Certificate Practical Completion for the final DCP Construction Project (whichever is the latter), subject to clause 5.3(2) the Collecting Agency will provide a refund to the Owner of any remaining Credit owed to the Owner;
- (2) if a Maintenance Period continues to run, Council may retain a Maintenance Bond from any remaining Credit; and
- (3) the Maintenance Bond will be returned to the Owner following completion of the Maintenance Period, unless Council has been required to draw upon the Maintenance Bond in accordance with clause 3.5(3).

6 COUNCIL'S OBLIGATIONS

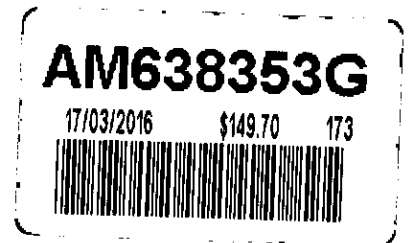
The Parties agree that:

- (1) Council must apply the Development Infrastructure Levy paid by the Owner towards the construction of the Infrastructure Projects;
- (2) Council may in its absolute discretion determine how, and to which Infrastructure Projects, Council directs the application of the Development Infrastructure Levy;
- (3) in the event that Council has insufficient funds to complete all Infrastructure Projects, Council must apply any funds Council receives from the Owner as a Development Infrastructure Levy towards the Infrastructure Projects in accordance with the DCP and the Act; and
- (4) Council will account for all Development Infrastructure Levy payments made by the Owner within a separate account relevant to the DCP with all funds held within an interest bearing account with a major Australian trading bank.

AM638353G

17/03/2016 \$149.70 173





7 OPEN SPACE LAND

7.1 Requirement to provide Open Space Land

The Owner agrees that prior to the issue of a Statement of Compliance for any Stage, the Owner must provide to Council the Open Space Land or cash in lieu of the Open Space Land:

- (1) as required under clause 52.01 of the Planning Scheme and the DCP; or
- (2) as required under section 18 of the *Subdivision Act 1988*;

at the direction and to the satisfaction of Council.

7.2 Provision of the Open Space Land

The Parties acknowledge and agree that:

- (1) where the Owner is providing an area of Open Space Land:
 - (a) below the required 5.31% of gross developable area set out in the Property Specific Land Budget in the DCP, the Owner must pay an amount equal to 5.31% of the gross developable area at the current site value pursuant to Section 18 of the Subdivision Act 1988 prior to the issue of Statement of Compliance of the relevant Stage or such other time as is approved in writing by Council; or
 - (b) above the required 5.31% of gross developable area set out in the Property Specific Land Budget in the DCP, the Owner is entitled to receive a payment from Council;
- (2) the Owner will transfer or vest in Council approximately 3.70 hectares of Open Space Land as set out in the DCP to be located generally in accordance with Endorsed Plans;
- (3) the area of Open Space Land to be provided by the Owner is above the required 5.31% of gross developable area set out in the DCP (at 1.40 hectares) by approximately 2.30 hectares;
- (4) following the vesting of the Open Space Land in Council in accordance with clause 7.1 and subject to the Owner complying with clause 7.2(5), Council will reimburse the Owner for the over provision of approximately 2.30 hectares of Open Space Land within 90 days of the issue of a Statement of Compliance for Stage 8; and
- (5) Council will only reimburse the Owner if the Open Space Land has been constructed in accordance with the Landscape Master Plan to the satisfaction of Council.

7.3 Obligation to provide Open Space Land fulfilled

The Parties acknowledge and agree that, upon complying with clause 7.2, the Owner has fulfilled its obligations under the Planning Scheme and the Permit in relation to the provision of Open Space Land.

7.4 Gifted Land

The Parties acknowledge and agree that:

- (1) the Owner will transfer to or vest in Council the Gifted Land at no cost to Council; and

- (2) the Gifted Land will comprise of approximately 3.54 hectares of land located generally in accordance with Endorsed Plans.

8 TRANSFER OR FURTHER COVENANTS OF THE OWNER

8.1 Owner's warranties

The Owner warrants and covenants with Council that:

- (1) it owns the Land;
- (2) save as shown in the certificate of title to the Land, there are no mortgages, liens, charges, easements or other encumbrances or any rights inherent in any person affecting the Land or any part thereof and not disclosed by the usual searches;
- (3) no part of the Land is subject to any right obtained by adverse possession;
- (4) it has not entered into any contract of sale or lease in respect of the Land or any part thereof which option, contract or lease is still subsisting; and
- (5) they will not sell, transfer, dispose of, assign, mortgage or otherwise part with possession of the Land or any part thereof without first providing to their successors a copy of this Agreement; and
- (6) Council is responsible for the reasonable costs (including legal costs) and expenses of and incidental to:
 - i) the preparation, execution and registration of the Agreement; and
 - ii) the negotiation, assessment, preparation, execution and registration of any amendment to the Agreement.

8.2 Further actions

The Owner must ensure that, until this Agreement is recorded on the folio of the register which relates to the Land, it, and the Owner's successors in title, will:

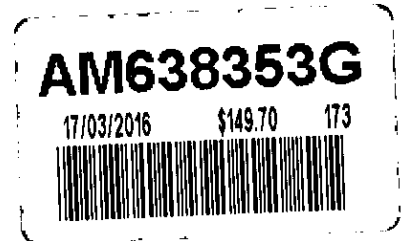
- (1) give effect to, do all acts and sign all agreements requiring those successors to give effect to this Agreement; and
- (2) execute a deed agreeing to be bound by this Agreement.

9 REGISTRATION OF AGREEMENT

The Parties agree that the Council will forthwith after the execution of the Agreement register the Agreement on the titles of the Land pursuant to the provisions of Section 181 of the Act.

10 AMENDMENT

This Agreement may be amended only in accordance with the requirements of the Act.





11 WAIVER

No waiver by any Party of any default in the strict and literal performance of or compliance with any provision condition or requirement in this Agreement will be deemed to be a waiver of strict and literal performance of and compliance with any other provision, condition or requirement of this Agreement nor to be a waiver of or in any way release any Party from compliance with any provision condition or requirement in the future nor will any delay or omission of any Party to exercise any right under this Agreement in any manner impair the exercise of such right accruing to it thereafter.

12 NO FETTERING OF COUNCIL'S POWERS

The Parties acknowledge and agree that:

- (1) this Agreement does not fetter or restrict the power or discretion of the Council to make any decision or impose any requirements or conditions in connection with the granting of any planning approval or certification of any plans of subdivision applicable to the Land or relating to any use or development of the Land; and
- (2) for clarity, nothing in this Agreement which provides for the provision of contributions to the Infrastructure Projects shall fetter the Council's ability to require the Owner to contribute to or provide Localised Infrastructure required by the subdivision of the Land.

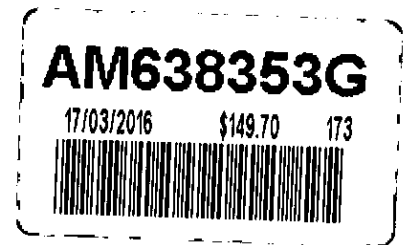
13 NOTICE

All notices and other communications provided for or permitted by this Agreement will be sent by prepaid mail, by hand delivery, email or by facsimile to the addresses of the Parties as specified in this Agreement or to such other address or person as any Party may specify by notice in writing to the other Party or Parties, and may be sent by an agent of the Party sending the notice. Each notice or communication will be deemed to have been duly received:

- (1) not later than two business days after being deposited in the mail with postage prepaid;
- (2) when delivered by hand;
- (3) if sent by email upon production of a delivery confirmation report received by the sender which records the time the email was delivered unless the sender received a delivery failure notification; or
- (4) if sent by facsimile transmission upon completion of that transmission and production of a transmission report stating that the facsimile was sent to the addressee's facsimile number.

14 COSTS ON DEFAULT

If the Owner defaults in the performance of any obligations under this Agreement it will pay to the Council its reasonable costs of action taken to achieve compliance with this Agreement.



15 JURISDICTION

This Agreement will be governed by and construed in accordance with the law of the State of Victoria and each of the Parties hereby submits to the jurisdiction of the Courts of the State of Victoria and the Victorian Civil and Administrative Tribunal.

16 INVALIDITY OF ANY CLAUSE

Notwithstanding anything to the contrary in this Agreement, if any provision of this Agreement will be invalid and not enforceable in accordance with its terms, all other provisions which are self sustaining and capable of separate enforcement without regard to the invalid provisions will be and continue to be valid and enforceable in accordance with those terms.

17 AGREEMENT BINDING ON SUCCESSORS OF OWNER

This Agreement will extend to and bind the Owners' successors, assigns, administrators, transferees and legal personal representatives and the obligations imposed upon them shall also be binding on their successors transferees purchasers mortgagees and assigns as if each of them had separately executed this Agreement.

18 JOINT OBLIGATIONS

In the case of each party that consists of more than one person (including in that expression any corporation) each of those persons covenants, agrees and declares that all of the covenants, agreements, declarations and consents contained in this agreement and made and given by that party have been entered into, made and given and are binding upon that person both severally and also jointly with the other person or persons constituting that party.

19 GST

The Parties agree that:

- (1) expressions used in this clause and in the GST Act have the same meanings as when used in the GST Act;
- (2) a supply under this Agreement of:
 - (a) in-kind contributions of any kind provided by the Owner to the Council for the supply by the Council to the Owner of a right to develop land where the right/s granted comply with requirements imposed by or under an Australian law (as that term is understood in the GST Act) will be exempt from GST;
 - (b) payments, fees, charges levies or other amounts payable (the amount payable) by the Owner to the Council for the supply of a right to develop land, to the extent:
 - (i) the amount payable is a payment of an Australian tax under subsection 81-5(1) of the GST Act; or
 - (ii) is an amount that is subject to subsection 81-10(1) of the GST Act and is not an amount listed in regulation 81-10.01 of the GST Regulations; or
 - (iii) is an amount that is not subject to subsection 81-10(1) of the GST Act but is listed in regulation 81-15.01 of the GST Regulations; or

- 15 -

- (iv) is an amount that is subject to subsection 81-10(1) of the GST Act and is listed in regulations 81-10.01 and 81-15.01 of the GST Regulations but is listed in subregulation 81-10.01(1)(g);

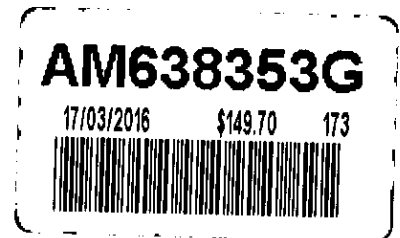
will be exempt from GST.

- (3) the recipient of a taxable supply made under or in respect of this Agreement must pay to the supplier, at the time the consideration for the supply is due, the GST payable in respect of the supply. This obligation extends to supply consisting of a Party's entry into this document; and
- (4) a Party is not obliged, under clause 19.4, to pay the GST on a taxable supply to it until given a valid tax invoice for the supply.

20 THE PARTIES AGREE

20.1 Registration and commencement of Agreement

The Parties agree that:



- (1) the Parties shall do all things necessary (including signing any further agreement, acknowledgment or document) to give full effect to the terms of this Agreement and to enable the Council to register this Agreement on the titles to the Land in accordance with the Act;
- (2) the Agreement shall commence on the date that it bears;
- (3) this Agreement may be executed in counterparts. Each counterpart is an original but the counterparts together are one and the same agreement. This Agreement is binding on the Parties on the exchange of the executed counterparts. A copy of the original executed counterpart sent by facsimile machine or email:
- (a) must be treated as an original counterpart;
 - (b) is sufficient evidence of the execution of the original; and
 - (c) may be produced in evidence for all purposes in place of the original.

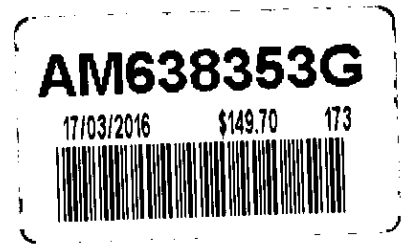
21 ENDING OF AGREEMENT

The Parties agree that:

- (1) upon the issue of a Statement of Compliance for the subdivision of a Residential Lot, this Agreement will end with respect to the Residential Lot;
- (2) in respect of all other land this Agreement will end:
- (a) once the Owner has completed, to the satisfaction of Council all of the obligations imposed upon it under this Agreement and the Collecting Agency has complied with clause 6; or
 - (b) otherwise by agreement between the Parties in accordance with Section 177(2) of the Act;
- (3) once this Agreement ends with respect to part or all of the Land, Council will, within 28 days of the Agreement ending with respect to that part of all of the Land, following a request from the Owner and at the cost of the Owner, complete and execute within

- 16 -

21 days all documents necessary to make application to the Registrar of Titles under Section 183(2) of the Act to cancel the recording of this Agreement on the register in relation to the relevant land.

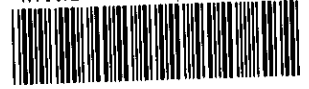


AM638353G

17/03/2016

\$149.70

173



EXECUTED BY THE PARTIES

Signed sealed and delivered as a deed by the Parties

SIGNED SEALED AND DELIVERED on behalf of the **BALLARAT CITY COUNCIL** by Natalie Reiter, General Manager City Strategy, pursuant to an instrument of delegation authorised by Council resolution, in the presence of:

Natalie Reiter

Witness

SIGNED SEALED AND DELIVERED by the said **JASON MATTHEW HAYES** by his attorney LEO HAYES under General Power of Attorney dated the 31st day of July 2014 and who certifies that the said power has not been varied or revoked in the presence of:

Attorney

Signature of witness

V. IVES

Address of witness

SIGNED by the said **DENISE ANN HAYES** by her attorney LEO HAYES under General Power of Attorney dated the 17th day of September 2014 and who certifies that the said power has not been varied or revoked in the presence of:

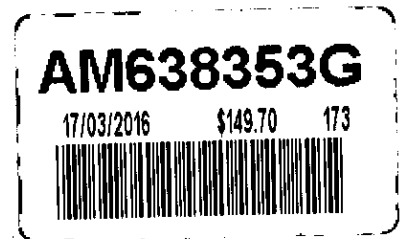
Attorney

Signature of witness

V. IVES

Address of witness

- 18 -



EXECUTED by CAROMINE PTY LTD (ACN 056 490 405) by being signed by the authorised person, the company not having a common seal:

.....
Sole Director

.....
Full Name
Leo Hayes

.....
Address
9 Yarra Gum Place, Mount Clear VIC 3350

EXECUTED by HAYMINE PTY LTD (ACN 104 284 782) by its attorney LEO HAYES under General Power of Attorney dated the 18th day of July 2014 and who certifies that the said power has not been varied or revoked

.....
Signature of Witness

.....
Name of Witness

.....
Address of Witness

.....
Attorney

EXECUTED by RJMAC PTY LTD (ACN 160 380 638) by its attorney LEO HAYES under General Power of Attorney dated the 21st day of July 2014 and who certifies that the said power has not been varied or revoked

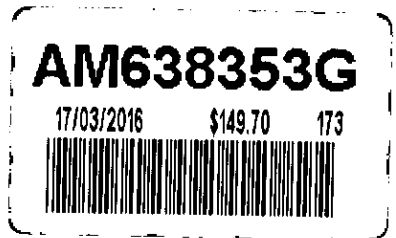
.....
Signature of Witness

.....
Name of Witness

.....
Address of Witness

.....
Attorney

- 19 -



EXECUTED by CONNECTING INVESTMENTS PTY LTD (ACN 164 692 148) by its attorney LEO HAYES under General Power of Attorney dated the 29th day of September 2014 and who certifies that the said power has not been varied or revoked

Signature of Witness

Attorney

Name of Witness

Address of Witness

EXECUTED by KERN SUPER PTY LTD (ACN 159 135 467) by its attorney LEO HAYES under General Power of Attorney dated the 3rd day of October 2014 and who certifies that the said power has not been varied or revoked

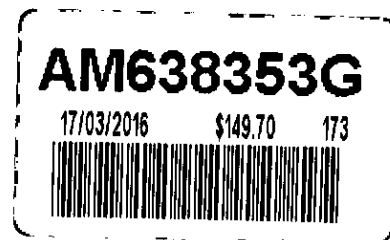
Signature of Witness

Attorney

Name of Witness

Address of Witness

- 20 -



MORTGAGEE CONSENT

Webster Doliita Finance Ltd as mortgagee under mortgage No. AL767337R acknowledges and agrees to be bound by the terms of this Agreement as it affects the land the subject of the mortgage.

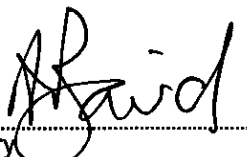
DATED:

EXECUTED by WEBSTER DOLILTA FINANCE LTD (ACN 004 664 322) in accordance with Section 127 of the Corporations Act 2001:


.....
Director

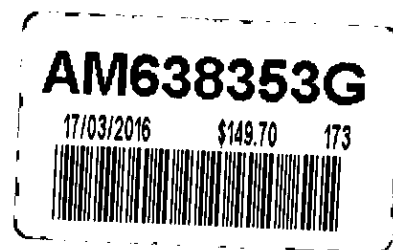
Neale John Gribble
.....
Full Name **9 Carlton St**
Ballarat 3350

.....
Address


.....
Director/Secretary

Robert Andrew Baird
.....
Full Name **124 Webster Street, Ballarat 3350**

.....
Address



Schedule 1 – details of the Owner and the Land

Land

Certificates of Title Volume 11589 Folios 265 - 270, 273 and 276 (more particularly described as Lots B, C, D, F, G, K, H and J on PS723410Y)

Owner

Name

Land owned

CAROMINE PTY LTD (ACN 056 490 405) of
9 Yarra Gum Place, Mount Clear, Victoria
(Tenant in Common)

Certificates of Title Volume 11589 Folios 265 -
270, 273 and 276

HAYMINE PTY LTD (ACN 104 284 782) of
9 Yarra Gum Place, Mount Clear, Victoria
(Tenant in Common)

Certificates of Title Volume 11589 Folios 265 -
270

RJMAC PTY LTD (ACN 160 380 638) of
1005 Norman Street, Wendouree, Victoria
(Tenant in Common)

Certificates of Title Volume 11589 Folios 265 -
270

**CONNECTING INVESTMENTS PTY LTD
(ACN 164 692 148)** of 1005 Norman Street,
Wendouree, Victoria (Tenant in Common)

Certificates of Title Volume 11589 Folios 265 -
270

KERN SUPER PTY LTD (ACN 159 135 467)
of 468 Gillies Road, Sulky, Victoria (Tenant in
Common)

Certificates of Title Volume 11589 Folios 265 -
270

**JASON MATTHEW HAYES and DENISE ANN
HAYES** of 6 Wasatch Court, Eagle Heights,
Queensland (Joint Proprietors and Tenants in
Common)

Certificates of Title Volume 11589 Folios 265 -
270

AM638353G

17/03/2016

\$149.70

173



Schedule 2 – Works in kind and project land to be provided

Column A	Column B	Column C	Column D	Column E	Column F	Column G
DCP Land Project	DCP Construction Project	DCP Drainage Infrastructure Item Description	Credit to be provided to Owner for DCP Land Project	Credit to be provided to Owner for DCP Construction Project	% of DCP Project to be delivered	Trigger for DCP Project provision (number of Residential Lots on the Land)
DI LA RB25			\$312,000		100%	Stage 1
DI LA RB26			\$195,000		100%	Stage 1
	DI_DR_BY/BZ	Pipe 27		\$ 262,981.46	13.03%	Stage 2 or such other time as is approved in writing by Council
	DI_DR_CB/CF	Pipe 29		\$ 36,620.79	2.80%	Stage 2 or such other time as is approved in writing by Council
	DI_DR_CB/CF	Pipe 30		\$ 81,133.04	6.21%	Stage 2 or such other time as is approved in writing by Council
	DI_DR_CB/CF	Pipe 31		\$ 479,912.37	36.72%	Stage 6 or such other time as is approved in writing by Council

- 2 -

Column A	Column B	Column C	Column D	Column E	Column F	Column G
	DL_DR_BY/BZ	Drainage Basin		\$ 1,754,666.62	86.97%	Stage 6 or such other time as is approved in writing by Council
	DL_DR_CB/CF	Drainage Basin		\$ 691,802.20	52.93%	Stage 6 or such other time as is approved in writing by Council
	DL_DR_CB/CF	Bio-retention		\$ 17,638.96	1.35%	Stage 6 or such other time as is approved in writing by Council
TOTAL			\$507,000.00	\$3,324,755.44		\$ 3,831,755.44

Notes:

1. Construction costs are expressed in June 2014 dollars and land costs are expressed in June 2015 dollars for Stage 1 and all costs expressed in June 2015 from Stage 2 onwards.
2. Land values and construction costs are crystallised at Statement of Compliance of the relevant Stage.
3. Land valuations are updated in accordance with the Indexation.
4. Works in kind items shall have no Council Fees charged on the drainage works (plan checking fees and supervision fees)

